

Ghan Shyam v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 19 January 2023 · Writ-C No. 711 of 2023 · **Writ disposed; recovery withdrawn, Code assessment to follow.**

HEADNOTE

Writ against a recovery citation for alleged theft dues was disposed of on the Electricity Department's statement that the recovery stood withdrawn and that final assessment, after enquiry on the petitioner's representation, would follow the procedure in the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ghan Shyam challenged a recovery citation dated 1 December 2020 issued by respondent no. 5 for electricity dues alleged to arise from theft. Counsel for the Electricity Department accepted notice on 10 January 2023 and took time to check whether any final assessment order had been passed. After two short adjournments, one of them with Writ-C No. 37137 of 2022, the Department stated on 19 January 2023 that the recovery had been withdrawn and that it was enquiring into the petitioner's representation before making a final assessment.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::17.10

Final assessment procedure in alleged theft

HOLDING

Where the Electricity Department states that a recovery citation for alleged theft dues has been withdrawn, that enquiry on the consumer's representation is under way, and that final assessment will be made only after that enquiry by following the procedure in the Electricity Supply Code, 2005, the writ is disposed of in terms of that statement, without a merits finding on the theft or the dues. ¶ 4

FLAG The order refers only to the procedure under the Electricity Supply Code, 2005 for finalising the assessment. It does not cite clause 17.10.

PRINCIPLE TAGS

final-assessment-follows-supply-code-procedure The writ was disposed of on the Department's statement that the impugned theft-dues recovery had been withdrawn and that final assessment would be made after enquiry on the petitioner's representation, following the Electricity Supply Code, 2005. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED THEFT OF ELECTRICITY, AND THE QUANTUM OF ANY FINAL ASSESSMENT

The court recorded withdrawal of the 1 December 2020 recovery citation and the Department's proposal to assess after enquiry. It made no finding on theft or on the amount due. ¶ 4